RESOLUTION A.392(X) adopted on 14 November 1977
REPORTS TO THE INTER-GOVERNMENTAL MARITIME CONSULTATIVE ORGANIZATION ON
CONTRAVENTIONS OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION OF THE SEA BY OIL, 1954
(as amended in 1962 and 1969)

INTER-GOVERNMENTAL MARITIME CONSULTATIVE ORGANIZATION

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Agenda item 10

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THE ASSEMBLY,

NOTING Article 16(i) of the Convention on the Inter-Governmental Maritime Consultative Organization concerning the functions of the Assembly,

HAVING NOTED Resolution 15 of the International Conference on Prevention of Pollution of the Sea by Oil, 1962, recognizing the value of exchange of information between Contracting Governments to the International Convention for the Prevention of Pollution of the Sea by Oil, 1954 (as amended in 1962) and resolving that the Organization should produce reports based on information contributed by the Contracting Governments as to, inter alia, the effectiveness of the Convention and the number of successful and unsuccessful prosecutions for the contravention of the Convention,

HAVING NOTED FURTHER the resulting request of the Maritime Safety Committee (MPS/Circ.62 of 26 June 1973) to Contracting Governments inviting Member Governments and the Contracting Governments to the 1954 Convention to inform the Organization annually of all prosecutions for contraventions of the Convention and the subsequent decision of the Marine Environment Protection Committee to circulate all such responses received to Member Governments and to Contracting Governments for information,

NOTING ALSO Resolution A.391(X) by which the Assembly adopted Procedures for the Control of Discharges under the International Convention for the Prevention of Pollution of the Sea by Oil, 1954 (as amended in 1962 and 1969),

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RECOMMENDS that a Contracting Government notify the Organization on each occasion in which it furnishes another Contracting Government with particulars in writing of evidence that a ship registered in the latter State's territory has contravened the Convention,

RECOMMENDS that the Contracting Government which has received such particulars advise the Organization and the other Contracting Government (within six months of receipt) of the results of the investigation which it has taken and that it further advise the Organization and the other Contracting Government of the results of any proceedings taken against the owner or master of the ship when such results are known to it,

REQUESTS the Secretary-General to collate the information received and periodically (and not less than once per year) circulate to Member Governments and Contracting Governments a comprehensive list of the reports of contraventions of the Convention received from Contracting Governments and indicate whether the other Contracting Governments have investigated the reports and the result of any proceedings taken when such results are known.

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